

DOCUMENT TITLE: Section 415 and 420, Indian Penal Code, 1860 (Cheating and Fraud)

COURT: Parliament of India / Statutory Criminal Enactment

CITATION: Central Act No. 45 of 1860, Sections 415, 420 (Corresponding to Section 318, Bharatiya Nyaya Sanhita, 2023)

BENCH: Statutory Criminal Code

DATE OF JUDGMENT: 1860-10-06

DOCUMENT TYPE: statute

[Section 415: Definition of Cheating]

Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, or intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or harm to that person in body, mind, reputation or property, is said to cheat.

[Section 420: Cheating and Dishonestly Inducing Delivery of Property]

Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Legal Classification: The offence under Section 420 IPC is cognizable, non-bailable, and triable by a Magistrate of the first class. An FIR under Section 154 CrPC can be lodged at the police station having territorial jurisdiction over the transaction or where the deceit took place.

[Section 318, Bharatiya Nyaya Sanhita, 2023 (BNS Cheating)]

Section 318 of BNS 2023 replaces Sections 415 and 420 IPC. Sub-section (4) provides that whoever cheats and thereby dishonestly induces delivery of any property or valuable security shall be punished with imprisonment up to seven years and fine.